

		Cal.App.4th 1202, 1209.) Plaintiff has failed to demonstrate the \$100 mediation fee on 6/12/25 was reasonably necessary to the conduct of litigation. Thus, the \$200 for mediation fees are taxed. Deposition Fees Defendant seeks to strike the deposition costs on the grounds it informed Plaintiff it would not be attending the deposition and thus, the taking of a certificate of nonappearance was not necessary. However, the CNA is useful in seeking to compel the deposition which Plaintiff did. Thus, the deposition fees are not taxed.
7	25-01477832 Gutierrez vs. Spieckerman	Motion for Protective Order Defendants Paul Spieckerman and Jessy Trostle’s motion for a protective order that plaintiff’s Special Interrogatories, Set Two, consisting of 140 interrogatories per defendant need not be answered in their entirety is CONTINUED to _____. Code of Civil Procedure Section 2017.020, subdivision (a) states: “The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.” Plaintiff opposes the Motion on the grounds that Defendants failed to meet and confer with Plaintiff in good faith prior to filing the Motion. The meet and confer requirement “is designed ‘to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order’ This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes.” (<i>Townsend v. Superior Court</i> (1998) 61 Cal.App.4th 1431, 1435.) This “requires that there be a serious effort at negotiation and informal resolution” and “that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (<i>Id.</i> at pp. 1438-1439.) Defendants have failed to establish that they engaged in “a serious effort at negotiation and informal resolution,” or an “attempt to talk the matter over, compare [counsel’s] views, consult, and deliberate.” (<i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1294.) Defendants sent a single meet and confer letter to Plaintiff on December 5, 2025, to which Plaintiff responded on December 9, 2025, offering solutions to potentially resolve the issue. Instead of continuing to meet and confer, Defendants filed their Motion. The parties are ORDERED to meet and confer in person or telephonically regarding the issues raised in the Motion within 15 days of the hearing. The parties are to file a joint statement of items still in dispute and their

		respective positions at least 7 court days prior to the continued hearing. No other briefing is permitted. Moving Defendants to give notice.
8	24-01375951 LaSorte vs. Ghassemieh	1) Motion for Leave to Amend 2) Motion for Terminating Sanctions Motion 1 – Motion for Terminating Sanctions Plaintiff Christina A. LaSorte’s Motion for Terminating Sanctions is DENIED. Plaintiff seeks termination sanctions against Defendant Majid Ghassamieh on the grounds that Defendant failed to comply with two Court orders issued on 2/27/25. Code of Civil Procedure section 2023.010 states, in part, “Misuses of the discovery process include, but are not limited to, the following: . . . [¶] (d) Failing to respond or submit to an authorized method of discovery. . . . [¶] (g) Disobeying a Court order to provide discovery.” Courts are authorized to impose a range of penalties for disobeying a discovery order, including monetary sanctions, evidentiary sanctions, issue sanctions, and terminating sanctions. (Code Civ. Proc., §§ 2023.010, 2023.030;.) The court in <i>J.W. v. Watchtower Bible and Tract Society of New York, Inc.</i> (2018) 29 Cal.App.5th 1142, 1169 explains, “courts have long recognized that the terminating sanction is a drastic penalty and should be used sparingly. [Citation.] A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party's fundamental right to a trial, thus implicating due process rights. [Citation.] The trial court should select a sanction that is ‘ “ ‘tailor[ed] ... to the harm caused by the withheld discovery.’ ” ’ [Citation.] ‘ “[S]anctions ‘should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.’ ” ’ [¶] The discovery statutes thus ‘evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.’ [Citation.] Although in extreme cases a court has the authority to order a terminating sanction as a first measure [citation], a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective.” On 2/27/25, the Court granted two Motions to Compel Further Responses filed by Plaintiff and ordered Defendant to provide verified, supplemental responses to Form Interrogatories (FROG), Set Four, No. 15.1 and FROG, Set Two, 17.1 (relating to Request for Admissions (RFA), Set One, Nos. 8, 10, 11 and 13) within 20 days. (ROA 132, 2/27/25 Minute Order.) The Court notes Plaintiff incorrectly states the underling motion to compel re No. 17.1 concerned RFA Nos. 8-13 and 17. However, the supporting separate statement, and therefore the